

TENTATIVE RULING

Case: **Ramos Oil Co., Inc. v. Elite Moving & Storage, Inc. et al.**
Case No. CV2023-2276

Hearing Date: **July 2, 2026** **Department Fourteen** **9:00 a.m.**

Plaintiff Ramos Oil Co., Inc.'s motion for attorneys' fees and costs is **GRANTED IN PART** in the amount of **\$139,928.19**. (Civ. Code, §§ 1717, 1033.5.) The Court finds that:

- Plaintiff was the prevailing party and is entitled to recover reasonable attorneys' fees pursuant to the agreement between plaintiff and defendants Elite Moving & Storage, Inc. and Yuval Bitton (collectively, "defendants"). (Civ. Code, § 1717; Bilheimer Decl., ¶¶ 2-3, Exhs. A-C.)
- Based upon (1) the nature of the litigation; (2) its difficulty; (3) the amount involved; (4) the skill required in its handling; (5) the skill employed; (6) the attention given; and, (7) the success in the case, the Court finds the legal fees requested by John Bilheimer, Esq. are reasonable. (Civ. Code, §§ 1717, 1033.5, subd. (c)(5)(B); *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1096; Bilheimer Decl., ¶¶ 4-9, Exh. D.) However, the Court declines to award legal fees as requested for the time legal assistants Melissa Hochwald ("Hochwald") and Jerica Moore ("Moore") spent working on this matter. (Bilheimer Decl., ¶¶ 4-9, Exh. D.) Neither Hochwald nor Moore submitted separate declarations regarding the hours they spent working on this matter. The statements by John Bilheimer regarding the time Hochwald and Moore spent working on this matter are hearsay. (Evid. Code, § 1200; Bilheimer Decl., ¶ 5-9, Exh. D.) Accordingly, the Court awards legal fees in the amount of \$138,310.00.
- The Court declines to award costs as requested for Sheila Lowe – Expert witness (\$5,700.00). (Bilheimer Decl., ¶ 5, 8, Exh. D.) Fees of experts not ordered by the court are not allowable as costs. (Code Civ. Proc., § 1033.5, subd. (b)(1).)
- The Court declines to award costs as requested for Zenith Investigations (\$17,862.67) and LexisNexis Accurint (\$675.01). (Bilheimer Decl., ¶ 5, 8, Exh. D.) Investigation expenses in preparing a case for trial are not allowable as costs. (Code Civ. Proc., § 1033.5, subd. (b)(1).)
- The Court finds the costs as requested for LA County Recorder (\$251.00), First Legal Records (\$387.30), and First Legal Network (\$979.89) were reasonably necessary to the conduct of the litigation and reasonable in amount. (Code Civ. Proc., § 1033.5, subd. (c).)

Accordingly, the Court awards plaintiff attorneys' fees and costs in the amount of **\$139,928.19**.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **State Farm Mutual Automobile Insurance Company v. Hernandez et al.**

Case No. CV2026-0787

Hearing Date: **July 2, 2026** **Department Thirteen** **9:00 a.m.**

Defendant Julia Maria Mendoza's demurrer to plaintiff State Farm Mutual Automobile Insurance Company's complaint is **DROPPED FROM CALENDAR AS MOOT**. (Code Civ. Proc., § 430.10, subds. (e), (f).) Plaintiff's complaint was dismissed with prejudice on June 1, 2026. (Request for dismissal [filed 6/1/26].)